

No. 26-1
IN THE
SUPREME COURT OF FANTASY FOOTBALL
October Term, 2026 (Expedited to September)

MARC GOLDICH,
Appellant,

v.

GOD EMPEROR COMMISSIONER DYLUS,
Appellee.

CLERK'S MOTION TO ABATE A CONTINUING NUISANCE
AND STAY FURTHER FILINGS

AARON KELLY
Clerk of Court
Lower Proprietor
September 2, 2026

STATEMENT

Aaron Kelly, Clerk of Court, moves to abate the continuing nuisance created by further filings concerning the date or time of the September 8 Draft and to stay such filings until the Draft concludes.

This case began with a request to move the Draft from 8:00 p.m. to 10:00 p.m. The Commissioner denied the request with prejudice because he did not want to. Goldich appealed to a court established that afternoon. The Commissioner declined to read the appeal. This Court granted certiorari. The Commissioner then moved the Draft to 10:00 p.m. by authoritarian decree and maintained that he had granted nothing.

The dispute has since produced two amicus briefs, a response, a motion to intervene dated three days in the future, a consolidated opposition, a supplemental brief withdrawing the requested relief while preserving the objection, and a Clerk.

Although the Commissioner ultimately moved the Draft to 10:00 p.m., the docket continued to expand as though nothing had been resolved.

ARGUMENT

I. THE DOCKET IS A CONTINUING NUISANCE.

Continuous or recurrent stream pollution is a nuisance for which an injunction may be granted. *Harrisonville v. W.S. Dickey Clay Manufacturing Co.*, 289 U.S. 334, 337 (1933). *Arizona Copper Co. v. Gillespie*, 230 U.S. 46, 56-58 (1913), upheld preventive relief where an upstream mining operation sent waste downstream and caused special injury to a lower proprietor. The right to use the stream did not include a right to destroy its quality for those below.

League members may use the docket. They may not render it unfit for ordinary League business.

The public injury is apparent. The Clerk's is special. Everyone else can stop reading.

The same problem arises in finite search space. In seeking an injunction against multiple counterfeit websites, Chanel argued that the defendants used its marks in website content, anchor text, and meta

tags to occupy scarce search-result space, displace legitimate material, degrade goodwill, increase Chanel's cost of reaching its audience, and cause a "single indivisible harm." *Plaintiff's Ex Parte Application for Entry of Temporary Restraining Order and Preliminary Injunction* at 5-6, *Chanel, Inc. v. chanel255.org*, No. 12-21762-CIV-ALTONAGA/SIMONTON, ECF No. 5 (S.D. Fla. May 16, 2012).

The relevant search term here is "Draft."

A League member looking for the Draft time now encounters Rule 23, *Howey*, Ethereum Classic, the Commodity Exchange Act, an oracle, a hard fork, multiple bedtimes, a third wedding anniversary, and an appellate court established Wednesday. The most direct source, Sleeper App, Settings > League > Draft Time, appears in Patel's table of authorities as "unvisited." Patel Br. 2.

Waivers, trades, and player injuries have received less attention.

II. THE RESULTING INJURY CANNOT BE APPORTIONED.

Independent actors may combine to cause one practically indivisible injury even without acting in concert. *Michie v. Great Lakes Steel Division, National Steel Corp.*, 495 F.2d 213, 218 (6th Cir. 1974). The court's example was a stream polluted by refuse from several factories. *Id.*

Goldich supplied appellate procedure. Patel supplied blockchain governance. Florio supplied commodities regulation. The Commissioner supplied the initial discharge.

Their contributions have mixed.

The Court need not determine whether the decisive discharge was the appeal, the oracle, the purported class settlement, the motion dated three days in the future, or the supplemental brief asking the Court to adjourn before anyone thought of something else to file. The injury is the resulting docket.

Apportionment would require the Clerk to read the record again.

The Clerk declines.

III. THE APPROPRIATE ABATEMENT IS A SHORT STAY.

A court has inherent authority to control the disposition of matters on its docket "with economy of time and effort for itself, for counsel, and for litigants." *Landis v. North American Co.*, 299 U.S. 248, 254 (1936). That authority requires the Court to weigh competing interests and keep any stay within reasonable bounds. *Id.* at 254-56.

The balance favors a stay lasting only until the Draft ends. No party will lose a claim. Every objection has already been preserved, several more than once and one in perpetuity.

Damages offer no practical substitute. Valuing the lost attention would require discovery, expert testimony, and another round of briefing.

The requested relief would impose no disproportionate hardship. *Harrisonville* denied an injunction where abatement would have required a city to abandon or replace a sewage system serving about 1,400 residents. 289 U.S. at 336-39.

Here, lawyers would refrain from filing until Tuesday.

The group chat remains available.

The public interest has been served. Appellant's filings have been viewed more than 660,000 times. Patel Br. 5.

The public is informed.

The Clerk recognizes that this Motion adds another paper to the alleged nuisance. The objection is preserved. No response is requested.

RELIEF REQUESTED

The Clerk respectfully requests an Order:

1. **STAYING** all further filings concerning the date or time of the September 8 Draft until the Draft concludes;
2. **DEEMING PRESERVED** every objection, reservation, alternative position, and expression of displeasure already contained in the record;
3. **PERMITTING** an emergency filing only upon a material change in circumstances, including an actual change to the Draft time; and
4. **REFERRING** any other paper to the Office of the Former Clerk [trash bin].

A new theory concerning the existing Draft time is not a changed circumstance.

Nothing in the requested Order would restrict ordinary complaining in the group chat.

CONCLUSION

The Draft is at 10:00 p.m.

The docket should close before then.

Respectfully submitted,

/s/ Aaron Kelly
AARON KELLY
Clerk of Court
Lower Proprietor
September 2, 2026